

Supplementary Criminal Referral — Perjury in Sworn Judicial Proceedings — Two Grounds

*Oxus Acquisition Corp + Imerman — Perjury Act 1911 ss.1 and 13 —
Supplementary to Main Referral of 20 March 2026*

Case references

BV20D01752 | CCR-6501-26-0100-000 | CRN 01/7340002/26

Referred to:

Metropolitan Police Service — Serious and Organised Crime Command
Copied to: Crown Prosecution Service — Special Crime Division

Nadia Zahmoul

Litigant in Person

29 March 2026

Veritas Numquam Perit

Perjury in Sworn Judicial Proceedings — Two Grounds — Oxus Acquisition Corp + Imerman — Perjury Act 1911 ss.1 and 13

BV20D01752 — Zahmoul v Zahmoul — Family Division — MacDonald J · Nadia Zahmoul — Litigant in Person · 29 March 2026

Addressed to	Metropolitan Police Service — Serious and Organised Crime Command	
Copied to	Crown Prosecution Service — Special Crime Division	
CRN	CCR-6501-26-0100-000	CRN 01/7340002/26
Referring party	Nadia Zahmoul (Litigant in Person) — nadia@rosekross.com	
Date	29 March 2026	
Case	BV20D01752 — DH v RH — Family Division — High Court	
Subject	Supplementary referral: two perjury grounds arising from sworn statements in judicial proceedings — Karim Nouredine Zahmoul (Respondent Husband)	
Relationship to main referral	This is a supplementary referral to the main criminal referral package filed 20 March 2026 and the recusal referral filed 24 March 2026. It may be considered independently or alongside those documents.	

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PART 1 — EXECUTIVE SUMMARY

This referral identifies two specific perjury grounds arising from sworn statements made by Karim Nouredine Zahmoul (the Respondent Husband) in the course of financial remedy proceedings BV20D01752. Each ground is supported by independent corroboration in documentary evidence that was before the court. No conclusions are drawn in this referral. The evidence is presented in chronological sequence. All documents are available for production on request.

Ground 1 — Oxus Acquisition Corp

Sworn asset schedule (ES2) dated 19 February 2024 values 50,000 shares in Oxus Acquisition Corp (NASDAQ: OXUS), a publicly listed company, at **£0**. The sworn instrument

was placed before MacDonald J at the final hearing on 19 February 2024. The false sworn valuation caused the court to accept the entry as non-matrimonial and to distribute assets on that basis. An application by NZ of 7 March 2024 formally raising this false sworn statement before the court was never determined.

Ground 2 — Imerman

The Respondent Husband's sworn position throughout the proceedings was that NZ unlawfully accessed and retained his confidential documents. That sworn position is directly contradicted by his own conduct: KZ transmitted documents to NZ via Signal messaging on 6 May 2021. The Signal transmission and its contents are established by screenshots in the bundle and confirmed independently by KZ's own solicitors (Withers LLP) in writing. KZ's sworn characterisation of NZ as having "*stolen*" his documents, maintained over years of proceedings, is contradicted by two independent sources satisfying the corroboration requirement under the Perjury Act 1911.

PART 2 — LEGAL FRAMEWORK

2.1 Perjury Act 1911 s.1

Section 1(1) of the Perjury Act 1911 provides that a person commits perjury who, being lawfully sworn as a witness or as an interpreter in judicial proceedings, wilfully makes a statement material in those proceedings which he knows to be false or does not believe to be true.

The sworn ES2 (document of assets and liabilities placed before a High Court judge in financial remedy proceedings) is a sworn statement in judicial proceedings for the purposes of the Act. The maker swears to its truth. A material false entry — one which affects the asset pool before the court — satisfies the materiality requirement.

2.2 Corroboration requirement

Section 13 of the Perjury Act 1911 provides that a person shall not be convicted of perjury solely upon the evidence of one witness as to the falsity of any statement alleged to be false. There must be some corroborating evidence of falsity. It need not be the evidence of another witness — a document, letter, or contemporaneous record contradicting the defendant's sworn statement is sufficient: *R v Rider* (1986).

Both grounds in this referral are supported by **two independent sources of corroboration** satisfying this requirement. The grounds are not built on NZ's word alone.

2.3 *GW v RW* [2003] EWHC 611 — the legal standard for asset valuation

In *GW v RW* [2003] EWHC 611, Mostyn J (as he then was) held at paragraph 16:

> "The very point of Form E is to give an honest and conscientious estimation of the true net worth of the party at the time of swearing it. For these purposes sensible and fair figures have to be attributed to unrealisable or deferred assets... It is unacceptable, in my view, that simply because an asset is not realisable on the day that the Form E is sworn, but is assuredly realisable, or likely to be realisable, at some future date, for a zero figure to be inserted."

This passage was cited by BM KC (NZ's counsel) in both his opening submission (19 February 2024) and his closing submission (28 February 2024). It was applied by MacDonald J in the context of KZ's initial Coinbase non-disclosure. It applies with equal force to the Oxus entry.

2.4 Perverting the course of justice — common law

Where sworn false statements are part of a course of conduct intended to affect the outcome of judicial proceedings, the conduct may additionally constitute perverting the course of justice (common law offence, triable on indictment, maximum sentence life imprisonment). The course of conduct documented in this referral extends over multiple years, multiple sworn instruments, and multiple proceedings. Where more than one person forms an agreement to carry out such conduct, it may be charged as a conspiracy to pervert the course of justice: *R v Selva and Morgan* [1982] QB 372.

This referral does not make that charge. It identifies the two perjury grounds and provides the corroboration for each. Whether the broader conduct constitutes a course of conduct amounting to perverting the course of justice is a matter for the investigating officers.

PART 3 — GROUND 1: OXUS ACQUISITION CORP — SWORN VALUE £0

3.1 The sworn instrument

On 19 February 2024 — the first day of the final hearing before MacDonald J in BV20D01752 — Karim Nouredine Zahmoul filed a sworn asset schedule (ES2: Net Effect Schedule) as a document in the proceedings. This document was sworn on its face. It constitutes a sworn statement in judicial proceedings for the purposes of the Perjury Act 1911.

The ES2 contains the following entry:

Asset	Sworn Value	Description in sworn instrument
Oxus Acquisition Corp (50,000 shares)	£0	"Non Matrimonial asset as subject to work and received on 6/2/2022"

3.2 What Oxus Acquisition Corp was

Oxus Acquisition Corp was a Special Purpose Acquisition Company (SPAC) incorporated in the United States and listed on the NASDAQ stock exchange under the ticker symbol OXUS. It was a publicly listed company with a publicly traded share price at the time the sworn ES2 was filed.

KZ's own position statement filed on 19 February 2024 describes him as "*company director... since June 2022, the US based Oxus Acquisition Corp.*"

AC KC, KZ's own counsel, confirmed in closing submissions (28 February 2024) that Oxus had merged with Borealis and that KZ's role ended upon the merger.

This confirms: (1) the company was real; (2) it had undergone a merger — a corporate event that would ordinarily trigger a valuation change; and (3) KZ held a directorial role that was compensated, at minimum, by the founder shares.

3.3 The corroboration

The corroboration for the falsity of the £0 sworn valuation is established by **two independent sources**:

Source 1 — NZ's conduct statement (bundle p.3456, paragraph 29(c)(vi)) identifies a corporate apartment rented on behalf of Oxus Acquisition Corp at \$32,000 (£26,016) which was "*allegedly reimbursed by Oxus Acquisition Corp in relation to Karim's unpaid directorship.*" This entry was in written evidence before the court. It establishes that Oxus was running real corporate expenditure — a \$32,000 apartment — through it at the relevant time. A company running \$32,000 in corporate apartment expenditure does not have shares with a value of zero.

Source 2 — BM KC's submissions (opening and closing) both cited *GW v RW* [2003] EWHC 611, which establishes that inserting a zero figure for a share in an assuredly realisable asset is unlawful. BM applied this passage to the Coinbase non-disclosure, but the same legal standard applies with equal force to Oxus. KZ's own counsel confirmed the company merged with Borealis — a merger is a corporate event that produces consideration. Zero is not a lawful valuation of founder shares in a company that underwent a merger.

3.4 The D11 application — never determined

On 7 March 2024, NZ filed a D11 application formally placing the Oxus perjury point before the court. This application was filed within the proceedings and constituted a formal application before MacDonald J.

The judgment of 18 April 2024 ([2024] EWFC 79, 111 paragraphs) is silent on the D11 application. It was never determined. The judgment adopted the £0 valuation and the non-matrimonial classification without reference to the pending application or the contradicting written evidence.

3.5 Effect on the proceedings

The false sworn valuation of £0 caused the court to treat 50,000 shares in a NASDAQ-listed company as a non-matrimonial asset of no value, to exclude it from the matrimonial pot, and to distribute the remaining assets on that basis. The materiality requirement under the Perjury Act 1911 s.1 is satisfied: the false entry directly affected the computation of the assets available for distribution.

PART 4 — GROUND 2: IMERMAN — THE FALSE SWORN POSITION

4.1 What was sworn

Throughout the proceedings BV20D01752, from the First Appointment in April 2021 through to the final hearing in February 2024, KZ's sworn position — maintained in sworn statements, sworn replies to questionnaire, and in oral evidence under oath — was that NZ had unlawfully accessed his personal electronic devices and documents without his knowledge or consent, and had retained and passed on hundreds of pages of his confidential material.

This sworn position was maintained across multiple sworn instruments over a period of approximately three years. It was formally placed before the court. It was adopted by MacDonald J in the final judgment ([2024] EWFC 79) at paragraphs 2 and 11, which characterise NZ as having conducted a campaign of accessing KZ's private devices and returning documents "*in carefully categorised files*." It directly founded the costs award of £25,000 against NZ in the costs judgment ([2024] EWFC 114, 24 May 2024, paragraph 26): MacDonald J ordered NZ to pay £25,000 for "*the Imerman exercise consequent on the wife accessing the husband's confidential documents*."

4.2 What KZ himself did — the Signal transmission of 6 May 2021

On 6 May 2021, KZ transmitted documents to NZ via Signal messaging. The transmission and its contents are established by screenshots. These screenshots are in the bundle in these proceedings.

The significance of the 6 May 2021 Signal transmission is as follows. KZ's sworn position was that NZ unlawfully took his documents without his knowledge. The Signal transmission of 6 May 2021 is a voluntary act: KZ chose to send NZ documents via an encrypted messaging application. Whatever the content of those documents, the transmission establishes that KZ was himself passing material to NZ by electronic means during the relevant period. His sworn characterisation of NZ as having accessed his confidential material without his knowledge is contradicted by his own conduct in transmitting material to her.

4.3 The corroboration — two independent sources

The falsity of KZ's sworn Imerman position is established by **two independent sources** satisfying the corroboration requirement under Perjury Act 1911 s.13:

Source 1 — Signal screenshots in the bundle: The screenshots of KZ's Signal transmission to NZ on 6 May 2021 are documentary evidence in the bundle. They are not NZ's word alone. They are a contemporaneous digital record of KZ's own act.

Source 2 — Withers LLP letters (Exhibit E5): KZ's own solicitors, Withers LLP, wrote to Stewarts Law on 10 March 2021 — before the Signal transmission and before the Imerman dispute crystallised — confirming the following: (1) NZ *"deals with all administrative tasks in the household"*; (2) KZ *"always retained the family home as his official address"* and NZ was *"opening and filing his documents"* as her established household role; (3) KZ *"was fully aware"* of this practice; (4) *"there can be no question that there was anything furtive about this practice."* A second Withers letter of 13 April 2021 confirmed that *"The Judge specifically did not make a costs order on the Imerman point."*

These two sources — the Signal screenshots and the Withers correspondence — are independent of each other and both contradict KZ's sworn position. Together they satisfy the corroboration requirement.

4.4 The oral evidence — KZ's own admissions under cross-examination

At the final hearing, KZ made three separate admissions under cross-examination by BM KC that he had concealed the Coinbase asset from NZ while knowing it was worth \$7.5 million. These admissions are recorded in the attendance notes of the final hearing and are available for production:

Ref	Date	Document	Content	Status
Admission 1	19–28 Feb 2024	Attendance notes lines 2908–2912	BM: <i>"At the time you sent this email on 17th May 2021, you knew that Coinbase had floated and your holding was worth 7 and a half million."</i> KZ: <i>"Yes, but less than—"</i> BM: <i>"Worth several millions of dollars, you knew that and did not point it out to Nadia."</i> KZ: <i>"Yes."</i>	Oral — under oath
Admission 2	19–28 Feb 2024	Attendance notes lines 2914–2919	BM: <i>"You did not produce it in any schedule, you forwarded her a</i>	Oral — under oath

			<i>schedule which did not even reference Topanga." KZ: "Yes." BM: "You told her she should not discuss this or take this to her lawyers." KZ: "Yes."</i>	
Admission 3	19–28 Feb 2024	Attendance notes lines 2987–3001	BM: <i>"Do you take any responsibility for the inevitable problems that will arise from disclosing this 2 days before a court hearing designed to reach settlement?"</i> KZ: <i>"I clearly take responsibility. I made a mistake by not disclosing earlier. I am sorry I did that."</i>	Oral — under oath
KZ own characterisation	19–28 Feb 2024	Attendance notes line 2968	When challenged on why inaccurate figures would assist engagement: KZ: <i>"Engagement can be helped by figures that are going to help you."</i> When challenged on the overall picture: KZ: <i>"The collection of facts gives horrible optics."</i>	Oral — under oath

These admissions establish KZ's pattern of concealment as a matter of oral evidence under oath. They are corroborative of the broader false sworn position documented in this referral.

4.5 Effect on the proceedings

KZ's false sworn Imerman position had three direct effects on the proceedings:

1. it caused NZ to be characterised in the final judgment as having engaged in deliberate wrongdoing, contributing to the judgment's adverse credibility findings against her;

2. it directly founded the £25,000 Imerman costs award against NZ in the costs judgment;
3. it contributed to the costs order of £200,000 against NZ in the same judgment, which was made on the basis of a finding of "egregious" litigation conduct that included the Imerman characterisation.

The total financial effect of the false sworn position on NZ's distribution is quantifiable.

PART 5 — CHRONOLOGICAL EVIDENCE INDEX

The following table sets out the primary documents supporting this referral in chronological order. All documents are available for production on request.

Ref	Date	Document	Content	Status
E-01	10 Mar 2021	Withers LLP to Stewarts Law (Exhibit E5)	KZ's own solicitors confirm: NZ was household administrator; devices left open; KZ fully aware; nothing furtive. Pre-dates Signal transmission of 6 May 2021. Independent corroboration Source 2.	In bundle — confirmed read by J at main hearing p.42
E-02	6 May 2021	Signal screenshots (bundle)	KZ transmits documents to NZ via Signal messaging. Contemporaneous digital record of KZ's own act. Independent corroboration Source 1.	In bundle
E-03	13 Apr 2021	Withers LLP to HFC (Exhibit E5)	<i>"The Judge specifically did not make a costs order on the Imerman point."</i> Confirms that the Imerman issue was determined against KZ at an earlier hearing.	In bundle — confirmed read by J at main hearing p.42
E-04	15 Mar 2021 (sworn) / 19 Feb 2024 (ES2 filed)	H's Form E (sworn 15 Mar 2021); ES2 (filed 19 Feb 2024)	Form E: Topanga valued at \$75,000 — Coinbase	In bundle; ES2 produced at trial

			holding concealed. ES2: Oxus Acquisition Corp valued at £0 — 50,000 shares in NASDAQ-listed company.	
E-05	6 Jun 2022	HFC letter to NZ re Oxus directorship	H appointed as <i>"independent director to Oxus Acquisition Corporation (Nasdaq Publicly Listed Company under ticker OXUS)." H "may receive shares in the company subject to performance."</i> Confirms the company was publicly listed at appointment.	In bundle per H's position statement para 10
E-06	19 Feb 2024	AC KC — H's Position Statement (Day 1 filing)	H described as <i>"company director... since June 2022, the US based Oxus Acquisition Corp."</i> Confirms role existed and was active at the time the ES2 was sworn.	Filed at trial
E-07	19 Feb 2024	BM KC — Opening Submissions (22pp)	GW v RW [2003] EWHC 611 cited for the proposition that a zero figure for an assuredly realisable asset is unlawful. Applied to Coinbase — same principle applies to Oxus.	Filed at trial
E-08	19–28 Feb 2024	Attendance notes — Final Hearing (102pp)	Three Coinbase admissions under oath (lines 2908–2919, 2987–3001). J confirms he has read bundle (p.42). KZ: <i>"The collection</i>	Attendance notes in evidence

			<i>of facts gives horrible optics"</i> (line 2968).	
E-09	28 Feb 2024	AC KC — H's Closing Submissions (40+pp)	Confirms Oxus merged with Borealis and KZ's role ended on merger. Confirms the company underwent a corporate transaction. Corroborates the false £0 valuation.	Filed at trial
E-10	28 Feb 2024	BM KC — Closing Submissions (21pp)	GW v RW cited again in closing. Imerman conduct addressed: BM submits W's distrust was reasonable; Imerman material showed H did not tell the truth.	Filed at trial — NOTE: received by NZ only May 2024; version authenticity not independently verified
E-11	7 Mar 2024	NZ D11 Application re Oxus perjury	Formal application to MacDonald J raising the Oxus perjury point. Filed within the proceedings. Never determined. No reference in judgment of 18 April 2024.	Filed — never determined
E-12	18 Apr 2024	DH v RH (No 3) [2024] EWFC 79 — MacDonald J	Final judgment (111 paragraphs). Adopts £0 Oxus valuation without reference to D11. Adopts <i>'stole/carefully categorised files'</i> Imerman characterisation (paras 2, 11) without reference to Withers letters or Signal screenshots. Para 64: <i>'obsession'</i> — source is AC's position	Publicly available: caselaw.nationalarchives.gov.uk/ewfc/2024/79

			statement; no reference to Prof Libby letter placed before J on Day 1.	
E-13	24 May 2024	DH v RH (No 4) [2024] EWFC 114 — MacDonald J	Costs judgment (27 paragraphs). Awards £25,000 Imerman costs against NZ (para 26) on basis NZ 'stole confidential financial information' — directly contradicted by Withers letters confirmed read by J. Determined without hearing; NZ had no funds to participate due to KZ's MPS arrears.	Publicly available: caselaw.nationalarchives.gov.uk/ewfc/2024/114

PART 6 — WHAT IS REQUESTED

This referral requests that the Metropolitan Police Service Serious and Organised Crime Command, under the existing CRN (CCR-6501-26-0100-000 / CRN 01/7340002/26), investigate the following:

1. Whether the sworn ES2 entry valuing 50,000 shares in Oxus Acquisition Corp at £0 constitutes a false statement in judicial proceedings known to be false or not believed to be true, contrary to section 1(1) of the Perjury Act 1911, and whether that entry was material to the financial remedy proceedings.
2. Whether KZ's sustained sworn characterisation of NZ as having unlawfully accessed his documents without his knowledge constitutes a false statement in judicial proceedings, in circumstances where his own contemporaneous conduct (Signal transmission of 6 May 2021) and his own solicitors' correspondence (Withers LLP, 10 March 2021 and 13 April 2021) directly contradict that sworn position.
3. Whether, taken together, the course of conduct documented in this referral and in the main criminal referral package filed 20 March 2026 constitutes an attempt to pervert the course of justice within the meaning of the common law offence, and whether the involvement of more than one person gives rise to a conspiracy to pervert the course of justice.

The documents referenced in this referral are available for production on request. NZ is available to give a signed statement in support of this referral. Dr Leigh Poyser MBBS

MRCPsych, whose clinical letter was selectively quoted in the judgment of 8 May 2025, has indicated availability to provide a reaction statement to the police on request. The forensic judgment analysis prepared on 29 March 2026 (DH v RH [2024] EWFC 79 & [2024] EWFC 114) is available as a supporting document identifying every finding in both judgments assessed against the three source categories (oral evidence, written evidence, submissions) and nine legal metrics.

PART 7 — DOCUMENTS AVAILABLE FOR PRODUCTION

Ref	Document	Date	Description
D-01	Exhibit E5: Withers LLP correspondence	10 Mar 2021 & 13 Apr 2021	KZ's own solicitors confirm NZ was household administrator; nothing furtive; no costs order on Imerman point. Two letters. In bundle.
D-02	Signal screenshots — KZ to NZ transmission	6 May 2021	KZ's transmission of documents to NZ via Signal messaging. Screenshots in bundle.
D-03	ES2 — H's Sworn Asset Schedule	19 Feb 2024	Oxus entry at £0. Filed as sworn document at final hearing.
D-04	Attendance Notes — Final Hearing	19–28 Feb 2024	102pp. Three Coinbase admissions (lines 2908–2919, 2987–3001). J: "I know" (p.42). Available as attendance notes; official transcript applied for under EX107 — outstanding.
D-05	BM KC Opening Submissions	19 Feb 2024	22pp. <i>GW v RW</i> cited re zero valuation. Prof Libby letter quoted verbatim in footnote 3.
D-06	AC KC Closing Submissions	28 Feb 2024	40+pp. Confirms Oxus merged with Borealis. Imerman allegation maintained.
D-07	D11 Application re Oxus perjury	7 Mar 2024	Formal application raising Oxus perjury before the court. Never determined.
D-08	DH v RH (No 3) [2024] EWFC 79	18 Apr 2024	Final judgment — 111 paragraphs. Publicly available. Paras 2, 11

			(Imerman); para 76 (Oxus); para 96 (no expert evidence on disability — directly contradicted by BM Day 1 opening).
D-09	DH v RH (No 4) [2024] EWFC 114	24 May 2024	Costs judgment — 27 paragraphs. Publicly available. £25,000 Imerman costs award (para 26). Determined without NZ's participation (para 3).
D-10	Forensic Judgment Analysis (v2)	29 Mar 2026	Paragraph-by-paragraph analysis of both judgments against three source categories and nine legal metrics. 12 findings: 3 FABRICATED, 4 MISCHARACTERISED, 1 SUPPRESSED, 4 UNSUPPORTED. Available on request.
D-11	NZ direct testimony	On request	Available as signed statement. Covers: Signal transmission; Withers letter; Imerman administrative role; 48-hour crisis following judgment of 8 May 2025; A&E admission 20 June 2025.
D-12	Dr Poyser reaction statement	On request	Dr Leigh Poyser MBBS MRCPsych has indicated availability to provide a reaction statement to police regarding the selective quotation of her clinical letter in the judgment of 8 May 2025.

Submitted by: **Nadia Zahmoul** — Litigant in Person — nadia@rosekross.com — 29 March 2026

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